

****New Decision****

****The Danish Data Protection Agency investigates the information obligation of Tryg Forsikring A/S****

****Date: 02-01-2024****

****Decision****

****Private Companies****

****No Criticism****

****Supervision / Own Initiative Case****

****Information Obligation****

The Danish Data Protection Agency has investigated whether Tryg Forsikring A/S's general procedures for fulfilling the information obligation when collecting personal data comply with data protection regulations concerning personal surveillance.

****Journal Number: 2022-431-0204.****

****Summary****

On November 1, 2022, the Danish Data Protection Agency initiated a case on its own initiative regarding Tryg's general procedures for fulfilling the information obligation when the company collects personal data in connection with personal surveillance.

Tryg informed that the company fulfills the information obligation 30 days after the conclusion of personal surveillance in cases of confirmed insurance fraud. If the insurance fraud is disproven, Tryg fulfills the information obligation as soon as possible and no later than 30 days after the conclusion of personal surveillance.

Based on Tryg's information, the Danish Data Protection Agency found that Tryg's procedures for fulfilling the information obligation under Article 14 of the General Data Protection Regulation are within the framework of data protection regulations when the company collects personal data in connection with personal surveillance.

****Conclusion of Supervision of Tryg Forsikring A/S****

1. The Danish Data Protection Agency hereby returns to the supervision case on its own initiative regarding Tryg Forsikring A/S's (Tryg) fulfillment of the information obligation under Article 14 of the General Data Protection Regulation when the company collects personal data in connection with personal surveillance.

The Danish Data Protection Agency requested a statement from Tryg on November 1, 2022. On November 21, 2022, Tryg provided the following information:

*****Fulfillment of the information obligation in connection with the implementation of personal surveillance****

It is Tryg's assessment that the information obligation under Article 14 of the General Data Protection Regulation is fulfilled in connection with the implementation of personal surveillance. Initially, it should be noted that Tryg, upon receiving a personal injury report from the injured party (the data subject) or upon receiving a work injury report from a company that has a work injury insurance with Tryg, informs the injured party about the progress of the case and may request further information. Tryg's information obligation is observed during this first contact with the injured party, as the injured party is informed about Tryg's processing of personal data by referring to Tryg's personal data and cookie policy (Appendix 1, see particularly sections B and C).

In extremely rare cases, where less intrusive means are insufficient to inform the case, there will be a need to initiate personal surveillance. The purpose of the personal surveillance is to confirm or disprove a well-founded and documented suspicion of insurance fraud.

****Non-Compliance with the Information Obligation****

Tryg has a legitimate interest in verifying that the data subject's claim for compensation is justified according to Article 6, paragraph 1, letter f of the General Data Protection Regulation and Article 9, paragraph 2, letter f according to Article 6, paragraph 1, letter f of the General Data Protection Regulation.

The collection of personal data in connection with the implementation of personal surveillance occurs inherently without Tryg having informed the injured party in advance, as the purpose would otherwise

be wasted. The postponement of the information obligation occurs in accordance with the exceptions in Section 22 of the Data Protection Act, as it is Tryg's assessment that the data subject's interest in receiving information about the processing prior to personal surveillance must yield to Tryg's – and society's – interest in determining whether there is insurance fraud. To support this, reference is made to example 7 regarding suspicion of insurance fraud, p. 22/60f in the Danish Data Protection Agency's guidance on the rights of data subjects, according to which the information obligation can be postponed if the purpose would otherwise be wasted.

****Fulfillment of the Information Obligation at a Later Time****

When it is finally assessed that the personal surveillance can be concluded, and no further personal surveillance needs to be initiated, Tryg fulfills its information obligation. The decision that personal surveillance can be concluded is made at an internal committee meeting. It should be noted that prior to such a meeting, a recommendation for a decision on the further course of the case is prepared. This involves, among other things, reviewing the existing material and forwarding the case to a specialist doctor who prepares a medical assessment. Only after this can a final decision be made regarding the conclusion of personal surveillance. Once this decision is made, Tryg fulfills the information obligation towards the injured party.

****Personal Surveillance Confirms Suspicion of Fraud****

Tryg, as an insurance company, is covered by Executive Order No. 1377 of June 21, 2021, on investigations conducted by insurance companies issued pursuant to the Financial Business Act § 43, paragraph 9. Chapter 3 of the Executive Order regulates, among other things, the requirements for what is needed before personal surveillance can be initiated and states that collected information from personal surveillance must be presented to the injured party within a reasonable time after the conclusion of the personal surveillance, according to § 10, paragraph 1 of the Executive Order.** It follows from Executive Order No. 1377 of June 22, 2021, § 5, that an insurance company, when it intends to make a decision in the case to the detriment of the injured party, must send the collected information for consultation with the injured party. It is our assessment that the information regarding personal monitoring under the General Data Protection Regulation (GDPR) Article 14 can be provided at the same time as the case is sent for consultation with the injured party in accordance with the Executive Order, as at this point there is no longer any basis for postponing the obligation to provide information under the Data Protection Act § 22. The interest of the injured party is found from this point not to have to yield to Tryg's and society's interest in postponing the obligation to provide information in relation to personal monitoring.

In accordance with the GDPR Article 14(3)(b), Tryg observes the obligation to provide information about the conducted personal monitoring in connection with the aforementioned consultation. It should be noted in this context that the consultation letter is sent within 30 days after the conclusion of the personal monitoring, as we have chosen to interpret reasonable time after the Executive Order in accordance with GDPR Article 14(3)(a), so that the obligations under these two sets of rules are aligned. Since the obligation to provide information under GDPR Articles 13 and 14 is fulfilled at the start of the claim, the consultation letter only contains the supplementary information that has not already been provided to the injured party earlier in the case process. The supplementary information provided in the consultation letter thus pertains to information about the conducted personal monitoring as well as a presentation of the material found during the personal monitoring, that is, the supplementary personal data collected in connection therewith, cf. GDPR Article 14(1)(d).

Personal monitoring refutes suspicion of fraud

In cases where personal monitoring refutes suspicion of insurance fraud, the insurance company must, according to Executive Order No. 1377 of June 21, 2021, § 10, also within a reasonable time after the personal monitoring has concluded, present the information collected in the investigation to the injured party in writing or on another durable medium, cf. § 5. Since the decision in such cases is not made to the detriment of the injured party, the obligation to provide information will not be fulfilled by the consultation letter itself, but by Tryg notifying the registered individual as soon as possible and no later than 30 days after the conclusion of the personal monitoring about the conducted personal monitoring and presenting the supplementary personal data collected during the personal monitoring in

accordance with Executive Order No. 1377 of June 21, 2021, § 10 and GDPR Article 14(1)(d)...

Based on the above, the Data Protection Authority finds that Tryg's procedures for fulfilling the obligation to provide information under GDPR Article 14, when the company collects personal data in connection with personal monitoring, are within the framework of data protection regulations, including GDPR Article 5(1) and Article 14 as well as Data Protection Act § 22.